

		As such, the Motion is denied [without prejudice to allowing the proper jury instruction being provided at trial. For example, CACI 204 if warranted.]
110	Alvarado vs. General Motors LLC 25-01458835	Motion for Attorney Fees Plaintiff Kenny Alvarado (“Plaintiff”) moves for an order awarding attorney fees pursuant to Civil Code section 1794(d), in the amount of \$14,510.50 against defendant General Motors LLC (“Defendant”). The motion is unopposed. Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “As the plain wording of section 1794, subdivision (d) makes clear, the trial court is ‘to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.’ ” (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.) “Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ ” (Ibid.) This action was filed in February 2025. The parties engaged in streamlined AB 1755 initial disclosures and attended mediation. There was no motion practice and no depositions were taken. Counsel billed a total of 23.9 hours over the span of the litigation (totaling \$11,510.50 in fees), and requests

		\$3,000 to cover additional anticipated time in connection with this motion. The billable rates requested vary from \$210 -\$215 for paralegals, \$425-\$440 for associates and \$525-\$540 for the partners who worked on this case. The Court has reviewed the declaration of Joshua D. Fennell in support of the motion and finds the rates associated with each billing attorney reasonable, given the experience of the attorneys. Similarly, the time expended is also reasonable. Because no opposition or reply was filed, the Court declines to award the requested \$3,000 in anticipated time for reviewing the opposition, preparing the reply and attending the hearing. Accordingly, the motion is GRANTED in the reduced amount of \$11,510.50. Plaintiff to give notice.
111	Sandoval vs. SPS North America, Inc. 26-01568222	Motion to Compel Arbitration x 2 Joinder Defendants SPS North America, Inc. (“SPS”) and Barbara Jean Dear (“Dear”) move to compel plaintiff Julian Sandoval (“Plaintiff”) to arbitrate the claims asserted in this action and to stay this action pending resolution of the arbitration. Defendant Amazon.com Services, LLC (“Amazon”) has filed a separate motion seeking the same relief, as well as a joinder to SPS and Dear’s motion. Amazon’s motion for joinder is GRANTED. A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1281.2.) “The trial court may resolve motions to